

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT  
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,  
d/b/a COLONIAL MOBILE MANOR,

Plaintiff,

vs.

Case No. 2022-CC-

JAMES B. FOX and  
ANY UNKNOWN TENANT(s),

Defendants.

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**COMPLAINT SEEKING EVICTION, DAMAGES  
AND OTHER RELIEF**

Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, d/b/a COLONIAL MOBILE MANOR, sues the Defendants, JAMES B. FOX and ANY UNKNOWN TENANT(s), in possession of certain premises more fully described below, and alleges:

**COUNT I  
ACTION FOR POSSESSION**

1. This is an action for removal of a mobile home park lot tenant and possession of the real property in Manatee County, Florida, as authorized by Section 723.061(1)(a) of Florida Statutes.

2. Plaintiff is a limited liability company owning and operating a mobile home park located in Manatee County, Florida.

3. Defendant, JAMES B. FOX, is a natural person believed to own a mobile home located at 900 - 9<sup>th</sup> Avenue East, Lot #91, Palmetto, Manatee County, Florida, 34221.

s 4 Defendant, ANY UNKNOWN TENANT(s), may reside on real property at 900 9<sup>th</sup> Avenue East, Lot #91, Palmetto, Manatee County, Florida, 34221, but if so, does without the consent of the Plaintiff.

5. Plaintiff owns, in fee, the real property located at 900 - 9<sup>th</sup> Avenue East, Palmetto, Florida, 34221, which has historically been known as COLONIAL MOBILE MANOR.

6. Plaintiff, as landlord, leased to Defendant, JAMES B. FOX , Lot #91 of the above stated mobile home park at a monthly rental fee of \$657.50 for a term of one (1) year, pursuant to Florida Statute §723.031. The Defendant owes lot rent for the month of August through December, 2022, in the total amount of \$3,532.50, consisting of Rent of \$657.50 per month, plus late rent fees (\$45.00 per month) in the amount of \$225.00, pursuant to the rental agreement.

7. Defendant has an outstanding water bill due of \$545.04, pursuant to the Rental Agreement, attached and marked Plaintiff's Exhibit "A".

8. Defendant, JAMES B. FOX, is in default in the rental agreement with Plaintiff by failure to pay the total sum of \$3,532.50 as of December 1, 2022.

9. On December 6, 2022, Plaintiff served on Defendants, JAMES B. FOX and ANY UNKNOWN TENANT(s), a Five Day Notice of Termination of Tenancy for Nonpayment of Rent. A copy of this Notice is attached and marked Plaintiff's Exhibit "B".

10. On December 6, 2021, Plaintiff served on Defendants, JAMES B. FOX and ANY UNKNOWN TENANT(s), a Five Day Notice of Termination of Tenancy for Nonpayment of Rent by Certified Mail Return Receipt Requested. A copy of this Notice is attached and marked Plaintiff's Exhibit "C" accompanied by a copy of the confirmation of delivery of the certified mail for the same Defendants, JAMES B. FOX and ANY UNKNOWN TENANT(s).

11. ANY UNKNOWN TENANT(s) may reside or have an interest in Lot #91 of COLONIAL MANOR MHC HOLDINGS, LLC but said residence is without the knowledge or approval of the Plaintiff and said person(s) have no right to reside at said location.

12. Pursuant to the lease and Section 723.068 of Florida Statutes, Plaintiff is entitled to an award of attorney fees.

13. Plaintiff is entitled to the summary procedure of Section 51.011 of the Florida Statutes.

**WHEREFORE**, Plaintiff requests this Honorable Court enter a judgment for possession of the premises together with costs and reasonable attorney's fees against Defendants, JAMES B. FOX and ANY UNKNOWN TENANT(s), and such other and further relief as the Court may deem proper.

**COUNT II**  
**ACTION FOR DAMAGES (RENTAL)**

14. This is an action seeking less than \$8,000.00 excluding costs, interest and attorney fees.

15. Plaintiff re-alleges the facts contained within paragraphs 1 through 13 as though fully set forth herein.

16. Defendant, JAMES B. FOX, owes the Plaintiff the sum of \$4,077.54 plus interest, costs and a reasonable attorney fee.

**WHEREFORE**, Plaintiff requests this Honorable Court enter a judgment against Defendant, JAMES B. FOX , for damages, costs, and attorney's fees.

**COUNT III**  
**ACTION TO ENFORCE LANDLORD'S LIEN**

17. This is an action seeking to enforce a landlord's lien pursuant to Sections 713.691 and 713.77 of Florida Statutes.

18. The Plaintiff re-alleges the facts contained within paragraphs 1 through 13 and paragraph 15 as though fully set forth herein.

19. Defendant, JAMES B. FOX , is the registered owner of a *1971 double-wide mobile home, Unknown Make and Model, Vehicle Identification No. FC24324SL1901B, Title No. 0004962585 and Vehicle Identification No. FC24324SL1901A, Title No. 0004962584* which is located on Lot #91 of the property leased by the Plaintiff to the Defendants.

20. The Plaintiff is entitled to a landlord's lien against said mobile home to enforce its judgment against Defendant for unpaid rent, utility bills, late fees, court costs and a reasonable attorney fee for the pursuit of this eviction and for related relief.

21. The Plaintiff claims entitlement to enforce its lien against said mobile home by judicial sale pursuant to Florida Statute §45.031.

22. Upon Plaintiff's lien being perfected, being entitled to credit toward the purchase of the mobile home in the sum representing all of Plaintiff's judgment against the Defendants, and ANY UNKNOWN TENANT(s), it will have perfected its landlord lien against the personal property of Defendants, namely a *1971 double-wide mobile home, Unknown Make and Model, Vehicle Identification No. FC24324SL1901B, Title No. 0004962585 and Vehicle Identification No. FC24324SL1901A, Title No. 0004962584*, to which Plaintiff is entitled to sell to satisfy its judgment against Defendants.

23. The Plaintiff is entitled to credit toward the purchase of said mobile home in the sum representing all of Plaintiff's judgment against the Defendant, JAMES B. FOX, all costs of this proceeding and reasonable attorney's fees.

**WHEREFORE**, the Plaintiff prays this Honorable Court enter an order, ordering a judicial sale of the mobile home identified herein pursuant to Florida Statute §45.031 to occur between thirty (30) and forty-five (45) days from the rendition of judgment in the above-styled cause, and to grant the Plaintiff a credit toward the purchase of the mobile home representing the unpaid balance of the Plaintiff's judgment against Defendants, plus any costs expended by it for obtaining the judicial sale and a reasonable attorney's fee.

**CERTIFICATE OF SERVICE**

**I HEREBY CERTIFY** that a true copy of the foregoing Complaint Seeking Eviction, Damages and Other Relief has been furnished to a private process server for service upon the Defendants, JAMES B. FOX and ANY UNKNOWN TENANT(s), at their last known address of 900 - 9<sup>th</sup> Avenue East, Lot #91, Palmetto, Florida, 34221, on this 20<sup>th</sup> day of December, 2021.

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